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KOSTIANTYN MARS, PRO SE

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

KOSTIANTYN MARS	)	Case No.: B2402220
	)	
Removing Defendant / Movant,	)	MOTION TO DISMISS CRIMINAL CASE
	)	B2402220
vs.	)	(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983;
	)	Fed. R. Civ. P. 81)
THE PEOPLE OF THE STATE OF	)	
CALIFORNIA,	)	
	)	DATE:
	)	TIME:
Respondent.	)	DEPT:
	)	

MOTION TO DISMISS CRIMINAL CASE B2402220
(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983; Fed. R. Civ. P. 81)

Movant Kostiantyn Mars respectfully moves this Court to dismiss Santa Clara County Superior Court Criminal Case No. B2402220 with prejudice, or in the alternative to permanently enjoin its further prosecution.

I. INTRODUCTION

The state criminal prosecution rests entirely on an alleged violation of a Domestic Violence Restraining Order dated November 28, 2023. That order is **void ab initio** because it was signed by a disqualified judge in violation of California Code of Civil Procedure § 170.4(d).

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2 **II. LEGAL BASIS**

- 3 1. The DVRO is void under CCP § 170.4(d).
4 2. A void order cannot support a criminal charge under Penal Code § 273.6.
5 3. The charging document fails to state a public offense (Penal Code § 1004).
6 4. Dismissal is warranted in the furtherance of justice (Penal Code § 1385) and to prevent
7 further deprivation of federal constitutional rights (42 U.S.C. § 1983).
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9 **III. FACTUAL RECORD**

10 The complete evidentiary record is contained in the attached Declaration of Kostiantyn Mars
11 and Exhibit A (Criminal Evidence Binder) and the Consolidated Exhibit Binder filed with the
12 Civil RICO Complaint. Key evidence includes Statements of Disqualification, the void DVRO,
13 the February 7, 2024 hearing transcript with threats of malicious prosecution, and the video
14 recording of the June 14, 2024 arrest.

15 **IV. RELIEF REQUESTED**

16 Movant respectfully requests that the Court:

- 17 1. Dismiss Criminal Case B2402220 **with prejudice**.
18 2. Quash and expunge all related warrants and records.
19 3. Grant such other and further relief as the Court deems just and proper.
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22 Respectfully submitted,

23 DATED: April 8, 2026
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26 KOSTIANTYN MARS
27 Pro Se
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KOSTIANTYN MARS) Case No.: B2402220
) (Santa Clara County Superior Court)
Removing Defendant / Movant,)
) **PROPOSED ORDER**
vs.)
)
THE PEOPLE OF THE STATE OF)
CALIFORNIA,)
)
)
Respondent.)

1 - Family Bench Warrant issued June 17, 2024

2 - Any and all other outstanding warrants or orders in Case B2402220

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5 are hereby **QUASHED and EXPUNGED** from all records.

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7 **IT IS FURTHER ORDERED** that the State of California and all its agencies shall take all
8 necessary steps to expunge any and all records related to the dismissed case from
9 law-enforcement and court databases within fourteen (14) days of the date of this Order.

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11 **SO ORDERED** this _____ day of _____, 2026.

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14 _____
15 UNITED STATES DISTRICT JUDGE

16 Western District of Texas
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